

24PSCV02009 24PSCV02009

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C07%2F01%2F2026

Source SHA-256: c45f98ad0e6ce45d6a2d69c58a7d42a37f28ae90688bf77a23e3ae5ce8c9bb3a

Case Number: 24PSCV02009 Hearing Date: July 1, 2026 Dept: G

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Armen
Azatyan's Responses to Form Interrogatories, Set One, and Request for Monetary
Sanctions

Respondent:

NO OPPOSITION

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Maria
Yanakopulus's Responses to Form Interrogatories, Set One, and Request for
Monetary Sanctions

Respondent:

NO OPPOSITION

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Armen
Azatyan's Responses to Special Interrogatories, Set One, and Request for
Monetary Sanctions

Respondent:

NO OPPOSITION

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Maria
Yanakopulus's Responses to Special Interrogatories, Set One, and Request for
Monetary Sanctions

Respondent:

NO OPPOSITION

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Armen Azatyan's Responses to Requests for Production, Set One, and Request for Monetary Sanctions

Respondent:

NO OPPOSITION

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Maria Yanakopulus's Responses to Requests for Production, Set One, and Request for Monetary Sanctions

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Armen Azatyan's Responses to Form Interrogatories, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Maria Yanakopulus's Responses to Form Interrogatories, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Armen Azatyan's Responses to Special Interrogatories, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Maria

Yanakopulus's Responses to Special Interrogatories, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Armen Azatyan's Responses to Requests for Production, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Jennifer Gonzalez and Martin Gonzalez's Motion to Compel Plaintiff Maria Yanakopulus's Responses to Requests for Production, Set One, and Request for Monetary Sanctions is GRANTED.

Plaintiffs

Armen Azatyan and Maria Yanakopulus are ordered to provide verified responses to all discovery, without objection, by July 15, 2026.

Plaintiffs

Armen Azatyan and Maria Yanakopulus are ordered to pay sanctions in the amount of \$1,470.00 within thirty (30) days of service of this order.

BACKGROUND

This

is a personal injury action arising from a motor vehicle collision. On July 20, 2022, defendants Jennifer Gonzalez and Martin Gonzalez (collectively, Defendants) allegedly caused a motor vehicle collision on State Route 60 in Diamond Bar, California, injuring plaintiffs Armen Azatyan and Maria Yanakopulus (collectively, Plaintiffs).

On June

21, 2024, Plaintiffs filed the Complaint, alleging a sole cause of action for motor vehicle.

On August

7, 2025, Defendants filed the Cross-Complaint, alleging causes of action for (1) implied and equitable indemnity, (2) contribution, and (3) declaratory relief.

On

March 30, 2026, the court held an informal discovery conference and ordered

Plaintiffs to provide responses to Defendants' discovery requests. On May 7, 2026, Defendants filed these motions to compel discovery, which are unopposed.

The motions are set for hearing between July 1 and 13, 2026.

ANALYSIS

Defendants move to compel responses to interrogatories and requests for production of documents. For each motion, Defendants request monetary sanctions. For the following reasons, the court GRANTS the discovery motions and requests for sanctions.

Legal Standard

A propounding party may file a motion to compel responses to interrogatories or to requests for production, or a motion to deem admitted matters specified in a request for admissions, if a response has not been received. (Code Civ. Proc., §§ 2030.290, subd. (b); 2031.300, subd. (b); 2033.280, subd. (b).) A response must be provided within 30 days of service, but if responses are untimely, the responding party waives objections. (Code Civ. Proc., §§ 2030.260, subd. (a); 2030.290, subd. (a); 2031.260, subd. (a); 2031.300, subd. (a); 2033.280, subd. (a).)

Monetary sanctions are mandatory as against any party who fails "to respond or to submit to an authorized method of discovery," "who unsuccessfully . . . opposes a motion to compel [discovery]," or whose failure to serve a timely response necessitated a motion to deem request for admissions as admitted, unless the court finds "the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (a); 2025.450, subd. (g)(1); 2030.290, subd. (c); 2031.300, subd. (c); 2033.280, subd. (c).) Justification is "substantial" if it is "clearly reasonable because it is well-grounded in both law and fact."

(Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.) The court may award sanctions in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).) While the imposition of sanctions is mandatory, the court “has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.)

Discussion

Defendants

served (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Requests for Production, Set One; and (4) Requests for Admissions, Set One, on each of the Plaintiffs on August 7, 2025. (See Mader Decl., ¶ 3; see also Mader Decl., Exh. A.) Defendants extended Plaintiffs’ time to serve responses to October 28, 2025. (See Mader Decl., ¶¶ 4–5; see also Mader Decl., Exhs. B–C.) Plaintiffs served unverified objection-only responses on October 28, 2025. (See Mader Decl., ¶ 6; see also Mader Decl., Exh. D.) Defendants permitted Plaintiffs to provide supplemental and substantive responses by December 12, 2025. (See Mader Decl., ¶ 8–9; see also Mader Decl., Exh. F.) Plaintiffs failed to provide supplemental and substantive responses. (See Mader Decl., ¶ 9.)

On

March 30, 2026, Plaintiffs’ counsel represented that they had a breakdown in the attorney-client relationship and did not explain the failure to comply with discovery. (See 3/30/2026 Min. Order, p. 1.) At the informal discovery conference, the court ordered Plaintiffs to serve responses. (See 3/30/2026 Min. Order, p. 1.) To date, Plaintiffs have failed to respond to the discovery requests. (See Mader Decl., ¶ 10.)

Therefore,

the court GRANTS the motions to compel responses to (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; and (3) Requests for Production, Set One. Plaintiffs are ordered to provide verified responses to all discovery, without objection, by July 15, 2026.

Since

Plaintiffs failed to serve responses to Defendants' discovery requests, the Code of Civil Procedure requires that the court impose monetary sanctions. Defendants' counsel charges a rate of \$250 per hour. (See Mader Decl., ¶ 11.) Based on counsel's representations, the court estimates that counsel spent one (1) hour in connection with the informal discovery conference, one (1) hour in connection with preparing these discovery motions, and one (1) hour to appear at the hearing on these motions, which total three hours; counsel did not spend time reviewing oppositions or drafting replies. (See Mader Decl., ¶ 11.) The rate of \$250 multiplied by three (3) hours equals \$750.00; the \$90.00 filing fee multiplied by eight equals \$720.00. (See Mader Decl., ¶ 11.) Together, these equal a sanction of \$1,470.00.

Therefore,

the court GRANTS the requests for sanctions in the amount of \$1,470.00.

CONCLUSION

For

these reasons, the discovery motions and corresponding requests for monetary sanctions are GRANTED.

Plaintiffs are ordered to provide verified responses to all discovery, without objection, by July 15, 2026.

Plaintiffs

Armen Azatyan and Maria Yanakopulus are ORDERED to PAY sanctions in the amount of \$1,470.00 within thirty (30) days of service of this order.